

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N16

HON. Donald F. Gaffney

Counsel and Parties Please Note:
Law and Motion in Department N16 is heard
on Wednesdays at 9:00 a.m.

Date: August 26, 2026

Tentative Rulings will be posted on the Internet on the day before the hearing by 5:00 p.m. [or earlier] whenever possible. To submit on the tentative ruling, please contact the clerk at (657) 622-5616, after contacting opposing party/counsel. Prevailing party shall give notice of the Ruling and prepare the Order/Judgment for the Court's signature if required.

NOTE: After posting of tentative rulings, the Court will not take the motion off calendar and will grant a continuance of the motion only upon stipulation of all affected parties.

If no appearances are made on the calendared motion date, then oral argument will be deemed to have been waived and the tentative ruling will become the Court's final ruling.

#	Case Name	Tentative
1	C.S. v. Doe 1, et al.	STATUS CONF.
2	K. vs. DOE 1	STATUS CONF.
3	Rose vs. 1	STATUS CONF.
4	S. vs. DOE 1	STATUS CONF.
5	Greene-Taylor vs. Kwak	TENTATIVE RULING: <u>Motion to Strike Portions of the Complaint</u> For the reasons set forth below, Defendant Kyu Dong Kwak's motion to strike the punitive damages allegations in Plaintiff Karen Greene-Taylor's Complaint is GRANTED. A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. (Code Civ. Proc., § 436.) Punitive damages are governed by Civil Code section 3294: "In an action for the breach of an obligation not arising from contract, where

it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” (Civ. Code § 3294(a).)

To state a prima facie claim for punitive damages, a plaintiff must “set forth the elements as stated in [Civil Code] section 3294,” as well as “specific factual allegations showing that defendant’s conduct was oppressive, fraudulent, or malicious.” (*Today’s IV, Inc. v. Los Angeles County Metropolitan Transportation Authority* (2022) 83 Cal.App.5th 1137, 1193.)

Oppression and fraud have not been alleged here. Malice is defined in the statute as “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code § 3294, subd. (c)(1).) Despicable conduct is conduct “so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.” (*Mock v. Michigan Millers Mutual Ins. Co.* (1992) 4 Cal.App.4th 306, 331.)

Allegations that a defendant exhibited a conscious disregard for the safety of others are sufficient to show malice. (*Taylor v. Superior Court* (1979) 24 Cal.3d 890, 895-96; *see also Dawes v. Superior Court* (1980) 111 Cal.App.3d 82.) To properly allege punitive damages in a motor vehicle accident action, a plaintiff needs to “establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he wilfully and deliberately failed to avoid those consequences.” (*Taylor, supra*, 24 Cal.3d at 896.)

The Complaint alleges Defendant’s carelessness in driving caused him to side-swipe Plaintiff’s vehicle. (Compl. at GN-1.) Defendant departed from the scene. (*Id.*) Plaintiff pursued Defendant, confronted him, and Defendant again fled in his vehicle. (*Id.*)

There are no specific factual allegations showing Defendant was aware of probable dangerous consequences of his conduct beyond the negligence itself. (*Taylor, supra*, 24 Cal.3d at 896.) Even assuming Defendant’s flight demonstrates he had a consciousness of guilt and intended to evade his responsibilities under the law, there is no allegation of any despicable conduct in which Defendant had a deliberate indifference to known probable consequences to the rights and safety of others.

		The motion to strike is granted. There are no specific facts showing Defendant acted with intentional, willful, or reckless disregard for the safety of others as required for malice. Should Plaintiff wish to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve it within 15 days of service of notice of ruling. Defendant to give notice.
6	Karasu vs. Beylem	OFF CALENDAR
7	Sykes vs. Lyft, Inc. the Estate of Brandon Blackthorne. Deceased	TENTATIVE RULING: <u>Motion to Compel Arbitration</u> Defendant Lyft, Inc., moves to compel arbitration of Plaintiffs George Allen Sykes, individually and as successor in interest to the Estate of Chandler Sykes, and Heather Hughes’s survival claim. For the following reasons, the motion is GRANTED. <u>Applicability of the FAA</u> The right to arbitration depends upon contract, and thus, a motion to compel arbitration is akin to a suit in equity seeking specific performance of that contract. (<i>See Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565.) The Federal Arbitration Act (“FAA”), which includes both procedural and substantive provisions, governs agreements involving interstate commerce. The FAA provides that written arbitration agreements “shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.” (9 U.S.C., § 2.) The parties here do not dispute that the agreement is governed by the FAA’s substantive rules. <u>Standard to Compel Arbitration Pursuant to the FAA</u> On a motion to compel arbitration under the FAA, the court’s role is limited to deciding: “(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the